

|                                                                                                                                                                     |                             |                           |                               |                                    |                                          |                                                                               |                                      |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|---------------------------|-------------------------------|------------------------------------|------------------------------------------|-------------------------------------------------------------------------------|--------------------------------------|
| <div><div>Internal Case Management System<br/>Worksheet - Case Closing</div></div> |                             |                           |                               |                                    | Top Allegation<br>USE OF FORCE - LEVEL 2 | Group<br>SIU-SPECIAL INVESTIGATIONS UNIT<br>Date of This Report<br>11/05/2020 |                                      |
| Date Reported<br>07/05/2020                                                                                                                                         | Date Assigned<br>07/05/2020 | IAB Log No.<br>2020-16515 | Case No.<br>(SIU) FI-2020-575 | Folder Type<br>FORCE INVESTIGATION | Preliminary Case Type<br>FILE            | Follow-Up No.                                                                 | Worksheet<br>Tracking No.<br>4736893 |

|                                                              |                             |                        |
|--------------------------------------------------------------|-----------------------------|------------------------|
| Topic/Subject<br>(Case Closing) CASE CLOSING UNSUBSTANTIATED | Activity Date<br>11/05/2020 | Activity Time<br>06:15 |
|--------------------------------------------------------------|-----------------------------|------------------------|

|                        |                |                  |
|------------------------|----------------|------------------|
| Referred to Group<br>- | Conferred With | Next Review Date |
|------------------------|----------------|------------------|

Closing Statement

Case#  
FI-2020-0575

Log#  
2020-16515

Date Case Received:  
07/08/2020

Date of Occurrence:  
07/04/2020

Administrative Statute of Limitations:  
01/04/2022

Classification:  
N/A

Programmatic Review:  
No

Investigator:  
Sergeant Maria Cooper, Tax# 926413

Team Leader:  
Lt. Timothy Magliente, Tax# 942097

Overall Disposition:  
Unsubstantiated

Log# 2020-16515  
On July 5, 2020 the command center received a report from Sergeant Stanton Tax# 937583 who reported that while conducting crowd control in regards to an officer involved shooting [REDACTED] DOB [REDACTED] raised a bottle at Deputy Inspector Nunez, Tax# 918086, and threatened to strike him with it. Dep. Insp. Nunez struck [REDACTED] with his baton which prompted [REDACTED] to flee on foot. A foot chase ensued and while chasing [REDACTED] an unknown male confronted Dep. Insp. Nunez in an attempt to stop him. Dep. Insp. Nunez struck the unknown individual one time with his baton and continued to apprehend [REDACTED] Sergeant Stanton stated he used his Taser on [REDACTED] in cartridge mode. The unknown male fled the scene. Inspector Morello Tax# 923414 is investigating. TRI# 2020-114 [REDACTED] was prepared for a Level 2 Use of Force. Dep. Insp. Nunez suffered swelling and pain in his right thumb. [REDACTED] suffered a laceration to his head and was removed to Elmhurst Hospital.

Interview of Complainant:  
On July 9, 2020, [REDACTED] was interviewed and stated that police officers were trying to remove everyone from the flo [REDACTED] because there was a shooting. [REDACTED] stated that the shooting wasn't near his location and it was just an excuse for officers to remove everyone. [REDACTED] began arguing with an officer and believes someone in his crowd threw a bottle at the officers, which made the officers "charge" towards him. He confirmed that he did have a bottle in his hand but did not throw it at officers. [REDACTED] stated that he was grabbed by an officer and tasered, fell on his face, sustaining bruises/swollen to the face. [REDACTED] remembers waking up in the hospital after he was tasered. He stated that he asked the officers with him what happened and they informed him that he throw a bottle. [REDACTED] indicated that he is willing to sign a HIPAA form and will provide photos of his swollen face along with videos of the incident and witness information via my department email. [REDACTED] cell phone number is [REDACTED]

The investigating officer attempted to follow-up with [REDACTED] who did not make return the documents requested or appeared at the pre-arranged meetings.

Background  
[REDACTED] M/B/ DOB-[REDACTED] NYSID# [REDACTED]  
[REDACTED]

No Probation/ No Parole

IAPRO (1) case:  
OG case Log# 10-56651 received on 11/12/2010, C/N [REDACTED], Subject SSA Belle, Tax# 354551, Allegations:  
Civ. MOS-FADO-Unnecessary Force - - Exonerated - Jan 20, 2011.  
ICMS (1): Above current case.  
CCRB (0): No complaints on file under C/N [REDACTED] name.

Identification of Witness (es):  
N/A

Interview of Witness (es):  
N/A

Identification of Subject Officers:  
Dep. Insp. Osvaldo Nunez, Tax# 918086 and Sgt. Matthew Stanton, Tax# 937583, 114 Precinct, were identified

Background Check(s):  
PEPR:  
Dep. Insp. Osvaldo Nunez, Tax# 918086, 47 Precinct (formerly assigned to the 114 Precinct)  
Date of Appointment: 7/18/1996  
Date of Promotion: 06/02/2014  
Assignment Date: 9/25/2017  
Duty Avail: Full Duty  
Monitoring summary:  
LVL 1 Force 02/08/2006 09/14/2007 3 or More CCRB in 1 Year  
LVL 1 Force 11/26/2008 11/26/2009 3 or More CCRB in 1 Year  
IAPRO: (32) Incidents:  
ICMS: (23) Incidents  
CCRB:(5) Incidents

PEPR:  
Sgt. Matthew Stanton, Tax# 937583, 114 Precinct  
Date of Appointment: 1/10/2005  
Date of Promotion: 10/25/2013  
Assignment Date: 11/4/2013  
Present Command: 114 Pct.

Duty Avail: Full Duty  
Monitoring summary: None  
IAPRO: (11) Incidents:  
ICMS: (12) Incidents  
CCRB:(4) Incidents

Review Department Records:

A review of Arrest Report# [REDACTED] / Complaint Report# 2020-114 [REDACTED]  
Arrest Date: 07-04-2020/ Time: 22:41  
Arrest Location: F/O [REDACTED]  
Defendant: [REDACTED] DOB [REDACTED] Charges: [REDACTED]

Details:

Arresting Officer: PO Brian Faught, Tax# 959627/  
Approving Supervisor: Sgt. Matthew Stanton, Tax# 937583

A review of Web Criminal for defendant [REDACTED] obtained:

Dep. Insp. Osvaldo Nunez, Tax# 918086, 114 Precinct, sustained an injury in connection with the arrest of [REDACTED] Arrest# [REDACTED] Dep. Insp. Nunez reported that while he was attempting to handcuff and effect a lawful arrest of an individual who threatened to hit him with a bottle he felt a sprain and pain to his left thumb which quickly swelled and began to ache. A line of duty report was prepared under Line of Duty Report# 566 and Aided Report# 2020-114 [REDACTED]

Medical Treatment Form:

The Medical Treatment Prisoner Form for [REDACTED] under report# 2020-114 [REDACTED], incident date - 7/4/2020, [REDACTED] was treated at Elmhurst hospital for minor lacerations over his left eye and laceration to his back caused by Taser prongs (Photos are attached to the Medical Treatment Prisoner Form).

CEW Used: Yes

Transported to Hospital 7305 Elmhurst Hospital

Wagon: 45F3

Remarks:

At T/P/O subject was struck with CEW in cartridge mode with one (1) dart penetrating the skin on his back causing a minor laceration. The second was caught in clothing and did not penetrate skin. The subject then fell and struck his head on the sidewalk causing minor laceration over his left eye. The subject was also intoxicated. Subject removed to hospital for evaluation for laceration and back laceration.

EMS Vasquez

[REDACTED] treated [REDACTED] and prescribed Augmentin an antibiotic (Note- no additional notes were written by the doctor).

ICAD Job# [REDACTED] Date -7/4/2020, occurrence- 114 Precinct,

2215 hours, Shots fired at location,

2221 hours, Authority of the housing Inspector requesting a level 1 mobilization, at 2236 hours, authority of HSGT Inspector CW Hospital canvass for possible person shot.

Disposition: 7/5/20 at 0408 hours - 92 C

A CCRB check:

CCRB: [REDACTED] and DOB 11/16/92, found no complaint information on record.

CCRB query: Arrest location [REDACTED] found no complaint information listed.

Video:

A review of bodycam footage from Dep. Insp. Osvaldo Nunez, Tax# 918086, from the night of July 4, 2020: footage documents Dep. Insp. Nunez responding to a confirmed shots fired job. Upon arrival, Dep. Insp. Nunez responds to a courtyard with several basketball courts. Dep. Insp. Nunez informs multiple people standing around that they must exit the area due to the fact that there is a crime scene. One bystander, identified as [REDACTED] who is holding what appears to be a 40-ounce glass bottle containing beer, takes issue with being asked to leave. At the 07:35 mark in the video, [REDACTED] says to Dep. Insp. Nunez, "you hit me with that shit, and I'll hit you with this shit" as he holds up his bottle. Dep. Insp. Nunez then attempts to grab [REDACTED] who runs. After a short foot pursuit, [REDACTED] is struck by a Taser fired by Sgt. Stanton and falls onto his face. He is then handcuffed, and removed off camera to after Dep. Insp. Nunez asks officers on scene to take him to EMS.

A review of Sergeant Stanton's BWC footage (BWC# [REDACTED]) disclosed:

BWC: footage begins recording at 2217 hours, Evidence Senair [REDACTED] Sgt. Stanton driving RMP. Audio begins driving with lights and sirens, responding to job put over by "housing Sergeant". Male voice stating shots fired to MOS, shots fired by MOS. arriving at courtyard large crowd observed with multiple MOS on scene. Dep. Insp. Nunez observed engaging with crowd stating "you are inside a crime scene, you got to go". Female black observed holding cellphone to Dep. Insp. Nunez's face stating "he made a crime scene, repeatedly stating nobody's shot, nobody's shot. He's shot your white shirt is shot, your white shirt is shot". Heavysset male black wearing white t-shirt states to Dep. Insp. Nunez "yo, you go over there. Go over there". Female black continues to record while shouting "your white shirts shot, don't come for us, don't come for us". Heavysset male black states "you go over there and ya do what ya do. Hit me with that shit and I'll hit you with this shit". Dep. Insp. Nunez attempt to apprehend heavysset male black wearing white t-shirt. Female black places her hands between Dep. Insp. Nunez and heavy set male black wearing white t-shirt. Glass bottle thrown at officers. Glass bottle observed crossing Sergeant Stanton's body crashing and breaking on ground. Heavysset male black wearing white t-shirt is observed holding glass bottle pointing/laughing while running in circles and side to side. Dep. Insp. Nunez observed running after male black wearing white t-shirt attempting to apprehend. Sergeant Stanton deploys Taser and male black wearing white t-shirt is observed falling to ground. Sergeant Stanton and Dep. Insp. Nunez cuff apprehended male. Sergeant Stanton rolls apprehended male on to his left side. apprehended male is assisted to his feet.

Conferrals:

On September 24, 2020, a conferral with Chief ADA James Liander, Queens Assistant District Attorney, Integrity Bureau, who stated that the subject officers can be interviewed; however, he will need a copy of the case for discovery purposes and all file attachments. [REDACTED] in October so the DA assigned will need a copy of this case before hand.

On November 5, 2020, a conferral with Ms. Kular at the Police Action Unit to request a notice of claim check on CV, [REDACTED] DOB [REDACTED]. Ms. Kular informed me that there were no claims found at this time; however, the complainant can file a lawsuit past the 90 days due to COVID restrictions.

IAB Intel

In regards to Deputy Inspector Osvaldo Nunez, Tax# 918086, 47 Precinct (previously assigned to the 114 Precinct) and Sergeant Matthew Stanton, Tax# 937583, 114 Precinct, the assigned agents report the following:

Deputy Inspector Nunez is described as a hardworking, and active Inspector, who would coordinate vehicle checkpoints, and would always be on scene with the officers. agent stated Deputy Inspector Nunez is well liked, and is big on the community. Deputy Inspector Nunez would address roll call and emphasize points that would improve police/community relations. However, he is not liked by some who worked for him, as he was quick to instruct the supervisors to issue command disciplines or negative craft reports. He also is known for being "hands on" in that he will respond to locations and assist police officers. He is not known for being "heavy handed." he did not have an open "open door policy", and officers could not approach him with anything. Deputy Inspector Nunez was not considered friendly at all. Agent further stated that, rumors are circulating now in the command that, Deputy Inspector Nunez might have push or, punch an unknown perp in the cells, on an unknown date, and time at the 114 Precinct.

Sergeant Stanton is the Assistant ICO, and has a positive reputation for being honest, professional, and reasonable. He is highly regarded by cops at the 114 Precinct. However, some agents state Sergeant Stanton is person to avoid at the command and feel that he is not an effective supervisor, because he does not respect officers, and he often talks down to cops at the command.

Agent was unfamiliar w/ the incident where defendant [REDACTED] was arrested on 07/02/2020 and claims excessive force was used against him.

Other Information of Investigative Value:

Note: [REDACTED] DAS photo shows a contusion to his left eye, which is the mugshot for his arrest on July 4, 2020, by the 114 Pct. A prisoner medical treatment form was prepared in regards.

PETS for the Taser cartridge invoice: Invoice# [REDACTED], invoicing officer- PO Faught, approving supervisor- Sgt. Stanton, vouchered a cartridge taken for arrest evidence, incident date 7/4/20, SE# [REDACTED], PCD [REDACTED]

A review of the Finest Message Personnel Orders revealed that effective 0001 hours, September 21, 2020, Dep. Insp. Osvaldo Nunez was transferred from the 114 Precinct to the 47 Precinct.

Patrol Guide 206-13 Hearings: (Chronological Order)

PO Brian Faught, Tax# 959627

On September 23, 2020, PO Brian Faught, Tax# 959627, was formally interviewed and stated that he was assigned to the 114 Precinct on April, 2016. He was previously assigned to the Police Academy as a recruit. PO Faught worked a [REDACTED] tour of duty on July 4, 2020 and was assigned as the sergeant's operator. PO Faught read his memo book entries for the record: [REDACTED] hours PFD at the 114 Precinct, 1514 muster for roll call, 2219 shots fired call at [REDACTED], 2241 -10-92 C 10-97H- one under informed by Dep. Insp. Nunez that he arrested [REDACTED] DOB [REDACTED] for menacing him with a bottle stating to Dep. Insp. Nunez that "if you hit me with that shit, I am going to hit you with this shit". Deft. taken to EGH for medical evaluation on Taser probe in back and laceration on face. 2219 safeguarding crime scene, 0050 out of service admin to process arrest for [REDACTED] EOT (end of memo entries).

PO Faught stated that he responded to a shots fired job on Vernon Blvd and 41 Ave inside the courtyard and was trying to establish a crime scene in that area, when he observed a commotion on the other end of the courtyard (approximately 50 yards away) involving an officer in a white shirt. PO Faught stated that he responded to the commotion and observed Dep. Insp. Nunez standing on the right side of a male who was face down on the ground with taser prongs in his back and blood on his face. Dep. Insp. Nunez was telling people to get back and informed PO Faught that [REDACTED] tried to hit him with a bottle and he was an arrest. Sgt. Stanton, officers from the Housing Bureau and many other officers were also present at the incident. PO Faught did not observe Dep. Insp. Nunez first interactions with [REDACTED] PO Faught stated that the only observations were once [REDACTED] was already on the ground lying face down.

PO Faught remembers Dep. Insp. Nunez holding a baton but did not see if Dep. Insp. Nunez used the baton on [REDACTED] however, he did remember Dep. Insp. Nunez used the baton to keep people back and obtain crowd control. PO Faught stated [REDACTED] was conscious and awake while on the ground, but he appeared intoxicated (smelled like alcohol, slurred speech, unsteady on his feet). PO Faught did not observe any other injuries on [REDACTED] aside from the taser prongs on his back and a cut on his face. [REDACTED] was taken to the ambulance on scene and another officer was assigned to go with [REDACTED] to the hospital. [REDACTED] was removed to Elmhurst General Hospital. PO Faught stated

that Dep. Insp. Nunez assigned him the arrest of [REDACTED] and informed him of what transpired. Dep. Insp. Nunez informed PO Faught that he told [REDACTED] to leave the crime scene which [REDACTED] refused and threatened to hit him with bottle. Dep. Insp. Nunez then chased [REDACTED] along with Sgt. Stanton who tasered [REDACTED]

After [REDACTED] was tasered he fell to the ground. PO Faught read the narrative on his arrest paperwork for the record, which was accurate and complete. PO Faught read the narrative on the medical treatment form for the record, which was accurate and complete. PO Faught did not see a taser cartage connected to the taser prongs. PO Faught stated that once [REDACTED] was released from the hospital he processed his arrest in the 114 Precinct. PO Faught stated that [REDACTED] appeared sober at that point and stated that he "fucked up".

Sgt. Matthew Stanton, Tax# 937583

On October 9, 2020, Sgt. Matthew Stanton, Tax# 937583, was formally interviewed and stated that he was assigned to the 114 Precinct on October, 2013. He was also promoted October 2013 and prior to his promotion was assigned to Midtown South Pct. Sgt. Stanton worked a [REDACTED] tour on July 4, 2020 and was assigned as the Assistant ICO. Sgt. Stanton was reassigned to Dep. Insp. Nunez's operator at 1800 hours. Sgt. Stanton read his memo book entries for the record: "

[REDACTED] PFD,

1615 Went out for ICO patrol monitoring,

1800 administrative,

2000 went out with Dep. Insp. Nunez,

2214 responded to a 1013 at [REDACTED], shots fired by MOS,

2217 Along with Dep. Insp. Nunez an arrest of [REDACTED] was conducted for menacing Dep. Insp. Nunez with a weapon".

Sgt. Stanton stated that he heard a 10-13 radio run called in by two Uniform Members of the Service from PSA 3, who discharged their weapons. Dep. Insp. Nunez indicated to show them responding. Upon arrival Sgt. Stanton remembers crossing a basketball court and observing approximately 20 to 30 people standing on the other side of the court. Sgt. Stanton observed Dep. Insp. Nunez along with other officers (PO Anderson and PO Mohammad, both from the 114 Pct.) instructing people to leave the basketball court because it was part of a crime scene. A female in the crowd with a camera phone in her hand told Dep. Insp. Nunez that they did not have to leave because she did not feel it was a crime scene.

Sgt. Stanton stated that as Dep. Insp. Nunez attempted to speak with the female when a male approached [REDACTED] and told Dep. Insp. Nunez that they were not leaving and that officers would have to "do what they have to do". [REDACTED] held a bottle of champagne or some type of liquor in his hand and told Dep. Insp. Nunez that he was going to hit him with it. Sgt. Stanton then observed Dep. Insp. Nunez with a baton in his hand lunged forward towards [REDACTED] in an attempt to arrest him and [REDACTED] ran. Sgt. Stanton did not remember seeing Dep. Insp. Nunez strike [REDACTED] with his baton but does recall Dep. Insp. Nunez stating that he did strike [REDACTED] at this point. The other people on scene began to throw objects at the officers. An unknown male wearing a white T-shirt, red pants, with a black strip on the sides attempted to stop Dep. Insp. Nunez from chasing after [REDACTED] and Dep. Insp. Nunez hit him with his baton.

Sgt. Stanton stated that he ran across from [REDACTED] in an attempt to cut him off to prevent him from escaping. Sgt. Stanton stated that he then tasered [REDACTED] because he still had a bottle in his hand and he didn't want to engage [REDACTED] in a fight with a bottle in hand. Sgt. Stanton stated that he only used the Taser one time. Once [REDACTED] was tasered, he fell face down to the ground and he hand cuffed him. Sgt. Stanton did not observe Dep. Insp. Nunez hit [REDACTED] with his baton when he fell to the ground. Sgt. Stanton stated that [REDACTED] was conscious and did not appear intoxicated. [REDACTED] had lacerations to his left eye from the fall to the ground but he was able to get up and walk to the ambulance. The ambulance was already on scene due to the 10-13 radio run. [REDACTED] had on prong in his skin and the other on his waist band.

Sgt. Stanton assigned PO Gonzalez (114 Pct.) to escort [REDACTED] to the hospital. Sgt. Stanton stated that he did take into consideration the totality of the situation such as the nature of the crime/ actions taken by the subject/ perceived threat or harm to the subject/ whether the subject is actively resisting custody/ size, age and condition of subject in comparison to MOS before he tasered the subject. [REDACTED] Sgt. Stanton was not able to give [REDACTED] instructions prior to tasered him but he believes Dep. Insp. Nunez did. There was no other arrest made at that time of [REDACTED] arrest. Sgt. Stanton and Dep. Insp. Nunez assigned PO Faught as the arresting officer. Both Sgt. Stanton and Dep. Insp. Nunez informed PO Faught of the arrest details.

Sgt. Stanton stated a medical treatment form was prepared and the narrative was accurate. Sgt. Stanton did prepare a TRI Report and the narrative was accurate. Sgt. Stanton stated that he did safeguard the CEW cartridge and after [REDACTED] was removed to the hospital he did not have any other contact with [REDACTED] Note: Sgt. Stanton and Dep. Insp. Nunez BWC video was presented and Sgt. Stanton described the following: Dep. Insp. Nunez BWC video shows [REDACTED] telling Dep. Insp. Nunez that he was not leaving, Sgt. Stanton stated that this was the scene he was describing. Sgt. Stanton stated the female in the video was the female he described. Sgt. Stanton then points out the unknown male with red pants, black stripes on the side that tried to stop Dep. Insp. Nunez. Sgt. Stanton then confirms that it was him on the video that tasered [REDACTED]

Sgt. Stanton's BWC was presented and this footage shows what appears to be Dep. Insp. Nunez striking [REDACTED] after he was tasered. Sgt. Stanton stated that he did not remember Dep. Insp. Nunez strike [REDACTED] after he was tasered but in the video it does appear that Dep. Insp. Nunez did strike [REDACTED] with his baton after he was tasered; however, [REDACTED] was not handcuffed at the time.

Dep. Insp. Osvaldo Nunez, Tax# 918086

On October 29, 2020, Dep. Insp. Osvaldo Nunez, Tax# 918086, was formally interviewed and stated that he is currently assigned to the 47 Precinct and was assigned to that command on September 21, 2020. Dep. Insp. Nunez was previously assigned to the 114 Precinct from September, 2017 through to September, 2020. He worked a [REDACTED] tour on July 4, 2020, for the independence day violence reduction. Dep. Insp. Nunez indicated that he assigned Sgt. Matthew Stanton, Assistant ICO as his driver. Dep. Insp. Nunez and Sgt. Stanton left the command at approximately 2000 or 2100 hours. At approximately 2200 hours, Dep. Insp. Nunez responded to a radio run on Vernon Boulevard and 41 Avenue, V/O 114 Precinct, in the Queens Bridge Housing Developme nt. The radio run cameover as a 10-13, transmitted by a housing unit regarding an MOS involved shooting. Once he arrived on scene, he searched for the MOS involved and found them in the court yard in the center of Queens Bridge houses, where Dep. Insp. Nunez describes was a chaotic crime scene. There was a firearm by a tree pit on one end of the court yard, a group of MOS shell casings and the perpetrator was arrested on the other end of the courtyard. Dep. Insp. Nunez observed what appeared to look like a BBQ in progress with approximately 80 to 100 people outside on the court yard with tables set up and alcohol.

Dep. Insp. Nunez was informed that a housing sergeant and his driver were in the court yard maintaining vigilance over the large BBQ when they observed a dispute and an unknown male pointed a firearm at another person. The sergeant and driver removed their firearms and started shooting at the unknown male with the firearm. The unknown male dropped his firearm on the courtyard and ran to the other side of the court yard towards Vernon Blvd, where he was arrested. The crowd began to throw coolers and object at the housing sergeant and his driver so they called the 10-85 over the radio.

Dep. Insp. Nunez stated that he began to try and direct the crowd away from the crime scene in the courtyard. At this point Dep. Insp. Nunez was approached by an individual identified as [REDACTED] who was holding a large bottle of alcohol in his hand. Dep. Insp. Nunez instructed [REDACTED] numerous times to move out of the crime scene and [REDACTED] told Dep. Insp. Nunez that he wasn't leaving and threatened to hit Dep. Insp. Nunez with the bottle he was holding in his hand. Dep. Insp. Nunez then swung his baton towards [REDACTED] with no impact in an attempt to remove the bottle that he was holding and place him under arrest. [REDACTED] ran away and Dep. Insp. Nunez along with Sgt. Stanton gave chase. There were numerous people attempting to get in the way of [REDACTED] apprehension.

Dep. Insp. Nunez remembers swinging his baton at another unidentified individual who was trying to stop him, but there was no impact that was not apprehended. Dep. Insp. Nunez continued to chase [REDACTED] at which point Sgt. Stanton tasered [REDACTED] who was still holding a very large bottle in his hand. Dep. Insp. Nunez did believe Sgt. Stanton took into consideration the totality of the situation such as the nature of the crime/ actions taken by the subject/ perceived threat or harm to the subject/ whether the subject is actively resisting custody/ size, age and condition of subject in comparison to MOS before discharging the taser at [REDACTED] Dep. Insp. Nunez was unable to warn [REDACTED] that he was going to be tasered because [REDACTED] was running away from being arrested and at the time he had a bottle in his hand. [REDACTED] fell to the ground after he was tasered and Dep. Insp. Nunez believed [REDACTED] was going to try and kick and resist so he used his baton to hold [REDACTED] legs down.

[REDACTED] was then placed in handcuff and Dep. Insp. Nunez noticed [REDACTED] might have been semi unconscious at first but he was also intoxicated which he described as slurred speech, glassy eyes, unsteady on his feet and a very large bottle of alcohol, which he was holding. Dep. Insp. Nunez did not observe any injuries on [REDACTED] on scene but does remember seeing the prisoner's mug shot and observed [REDACTED] had a contusion to the face, which might have been from the fall after being tasered. Dep. Insp. Nunez did not recall if the taser prong penetrated [REDACTED] skin. Dep. Insp. Nunez stated that he called EMS for [REDACTED] because he had been semi unconscious. Another female was arrested on scene and later on released from the precinct with a summons. Dep. Insp. Nunez did not recall who transported [REDACTED] to the hospital but there was an officer assigned.

Dep. Insp. Nunez assigned the arrest to PO Brian Faught, 114 Precinct. Dep. Insp. Nunez stated that he informed PO Faught of the details of the arrest. Dep. Insp. Nunez does not recall if Sgt. Stanton safeguarded the CEW Cartridge. Dep. Insp. Nunez was presented with the OMNI arrest form for [REDACTED] [REDACTED], the TRI report of the incident (2020-114 [REDACTED]) and the Medical Treatment Prisoner Form (2020-114 [REDACTED]) prepared for [REDACTED] Dep. Insp. Nunez confirmed that the narrative for all three forms were accurate. Dep. Insp. Nunez BWC was presented and he confirmed that [REDACTED] was the male with the white T-shirt black jeans holding a bottle in his hand. Dep. Insp. Nunez confirms that in the video [REDACTED] threatens to hit him with the bottle and at approximately 7 minutes and 40 seconds in to the video he swung his baton with no impact towards [REDACTED] Other individuals involved were not observed but Dep. Insp. Nunez confirms that at approximately 7 minutes and 47 seconds into the video he swung his baton again at those unknown individuals. Approximately 7 minutes and 57 seconds into the video Dep. Insp. Nunez confirms that Sgt. Stanton tasered [REDACTED] Dep. Insp. Nunez cannot confirm in the video at what point [REDACTED] was unconscious. Sgt. Stanton's BWC was presented and Dep. Insp. Nunez confirms that at approximately 7 minutes and 6 seconds into the video he swung his baton with no impact at [REDACTED] At approximately 7 minutes and 10 seconds into the video an unknown object was thrown from the crowd at the Members of the Service present. At approximately 7 minutes and 25 seconds into the video Dep. Insp. Nunez confirms that he struck [REDACTED] with his baton on the legs. Dep. Insp. Nunez stated that at that point he still believed [REDACTED] had a bottle in his hand and was going to kick his legs. Dep. Insp. Nunez confirms after watching the video that he handcuffed [REDACTED] right hand.

Conclusion:

This investigation disclosed that on July 5, 2020, Sgt. Matthew Stanton, Tax# 937583, 114 Precinct, contacted the Command Center to report that while conducting crowd control in regard to an officer involved shooting, [REDACTED] DOB [REDACTED], raised a bottle at Dep. Insp. Osvaldo Nunez, Tax# 918086, 114 Precinct, and threatened to strike him with it. Dep. Insp. Nunez attempted to strike [REDACTED] with his baton which prompted him to flee on foot. A foot chase ensued and while chasing [REDACTED] an unknown male confronted Dep. Insp. Nunez in an attempt to stop him. Sgt. Stanton stated that he used his taser on [REDACTED] in cartridge mode. [REDACTED] was interviewed and stated that police officers were trying to remove everyone from the flo 41-03 Vernon Blvd because there was a shooting. [REDACTED] stated that the shooting wasn't near his location and it was just an excuse for officers to remove everyone. [REDACTED] began arguing with an officer and believes someone in his crowd threw a bottle at the officers, which made the officers "charge" towards him. [REDACTED] confirmed that he did have a bottle in his hand but did not throw it at officers. [REDACTED] stated that he was grabbed by an officer and tasered, fell on his face, sustaining bruises/swollen to the face. Dep. Insp. Nunez was formally interviewed and stated that he instructed [REDACTED] numerous times to move out of the crime scene. [REDACTED] told Dep. Insp. Nunez that he wasn't leaving and threatened to hit Dep. Insp. Nunez with the bottle he was holding. Dep. Insp. Nunez then swung his baton towards [REDACTED] with no impact in an attempt to remove the bottle he was holding and place him under arrest. [REDACTED] ran and Dep. Insp. Nunez along with Sgt. Stanton gave chase. Sgt. Stanton tasered [REDACTED] who was still holding a very large bottle in his hand. Dep. Insp. Nunez stated that he struck [REDACTED] with the baton while he was on the ground because he believed he was still holding the bottle and to prevent him from s triking him with hisfeet. This investigation disclosed that there is insufficient evidence to prove or disprove that Dep. Insp. Nunez utilized unnecessary force by striking [REDACTED] with the baton. The allegation of Force - Struck with - Baton Asp will be closed as Unsubstantiated. Based on the use of force investigative responsibilities and reporting guide this matter was investigated by the Internal Affairs Bureau as a Use of Force - Level 2, due to the injuries sustained in connection with this incident. A Threat, Resistance or Injury Report was prepared under TRI# 2020-114 [REDACTED], by Dep. Insp. Osvaldo Nunez, Tax# 918086, 114 Precinct, in connection with this incident. The allegation of Use of Force - Level 2, will be closed as Information and Intelligence. Dep. Insp. Osvaldo Nunez, Tax# 918086, 114 Precinct, sustained an injury in connection with the arrest of [REDACTED] Arrest# [REDACTED]. Dep. Insp. Nunez reported that while he was attempting to handcuff and effect a lawful arrest of an individual who threatened to hit him with a bottle he felt a sprain and pain to his left thumb which quickly swelled and began to ache. A line of duty report was prepared under Line of Duty Report# 566 and Aided Report# 2020-114 [REDACTED]. The allegation of Aided MOS - Injured - Result of taking Police Action will be closed as Information and Intelligence. [REDACTED] sustained an injury in NYPD custody in connection with Arrest# [REDACTED]. Department records disclosed that [REDACTED] was treated at Elmhurst Hospital for a laceration/contusion over the left eye and back as a result of being tasered. The allegation of Prisoner Incident - Injured in NYPD Custody - MOS Involved will be closed as Information and Intelligence. Sgt. Matthew Stanton, Tax# 937583, 114 Precinct, discharged a CED with probes or [REDACTED] TRI# 2020-114 [REDACTED] with CEW Loq Number# 20-710. The cartridge was vouchered under property invoice PETS Invoice# [REDACTED], SE# [REDACTED]. Sgt. Stanton deployed the CEW while in pursuit of [REDACTED]



The allegation of CEW/Taser Discharged - with Probes - On a Prisoner/Suspect will be closed as Information and Intelligence. ██████ sustained an injury in NYPD custody in connection with Arrest# ██████. Department records disclosed that ██████ was treated at Elmhurst Hospital for a laceration/contusion over the left eye and back as a result of being tasered. The allegation of Prisoner Incident - Injured in NYPD Custody - MOS Involved will be closed as Information and Intelligence. Based on the use of force investigative responsibilities and reporting guide this matter was investigated by the Internal Affairs Bureau as a Use of Force - Level 1, due to the injuries sustained in connection with this incident. A Threat, Resistance or Injury Report was prepared under TRI# 2020-114 ██████, by Sgt. Matthew Stanton, Tax# 937583, 114 Precinct, in connection with this incident. The allegation of Use of Force - Level 1, will be closed as Information and Intelligence.

Subject Officer Disposition (s):  
Deputy Inspector Osvaldo Nunez, Tax# 918086, 47 Precinct (formerly assigned to the 114 Precinct  
Use of Force - Level 2 - Information and Intelligence  
Force - Struck with - Baton Asp - Unsubstantiated  
Aided MOS - Injured - Result of Taking Police Action - Information and Intelligence  
Prisoner Incident - Injured in NYPD Custody - MOS Involved - Information and Intelligence

Sergeant Matthew Stanton, Tax# 937583, 114 Precinct  
Use of Force - Level 1 - Information and Intelligence  
CEW/Taser Discharged - with Probes - On a Prisoner/Suspect - Information and Intelligence  
Prisoner Incident - Injured in NYPD Custody - MOS Involved - Information and Intelligence

Overall Disposition:  
Unsubstantiated

| Subjects Involved                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                       |                                                      |                               |                                        |                            |
|-------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------|------------------------------------------------------|-------------------------------|----------------------------------------|----------------------------|
| Name<br>918086 OSVALDO NUNEZ DI (114-114 PRECINCT)    | Status<br>UNIFORM MEMBER OF SERVICE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Sex<br>MALE                                           | Race                                                 | Dob<br>[REDACTED]             |                                        |                            |
| Allegations                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                       |                                                      |                               |                                        |                            |
| 1                                                     | Full Allegation<br>Use of Force - Level 2                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Classification<br>Arrest Effected                     | Allegation Index<br>Force Investigation Notification | Allegation Date<br>07/05/2020 | Finding<br>04 - Info. and Intelligence | Finding Date<br>11/04/2020 |
|                                                       | Comments<br>This investigation disclosed that on July 5, 2020, based on the use of force investigative responsibilities and reporting guide this matter was investigated by the Internal Affairs Bureau as a Use of Force - Level 2, due to the injuries sustained in connection with this incident. A Threat, Resistance or Injury Report was prepared under TRI# 2020-114 [REDACTED], by Dep. Insp. Osvaldo Nunez, Tax# 918086, 114 Precinct, in connection with this incident. The allegation of Use of Force - Level 2, will be closed as Information and Intelligence.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                       |                                                      |                               |                                        |                            |
| 2                                                     | Full Allegation<br>Force - Struck with - Baton Asp                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Classification<br>Arrest Effected                     | Allegation Index<br>O-Other                          | Allegation Date<br>07/05/2020 | Finding<br>12 - Unsubstantiated        | Finding Date<br>11/04/2020 |
|                                                       | Comments<br>This investigation disclosed that on July 5, 2020, Sgt. Matthew Stanton, Tax# 937583, 114 Precinct, contacted the Command Center to report that while conducting crowd control in regards to an officer involved shooting, [REDACTED] DOB [REDACTED] raised a bottle at Dep. Insp. Osvaldo Nunez, Tax# 918086, 114 Precinct, and threatened to strike him with it. Dep. Insp. Nunez attempted to strike [REDACTED] with his baton which prompted him to flee on foot. A foot chase ensued and while chasing [REDACTED] an unknown male confronted Dep. Insp. Nunez in an attempt to stop him. Sgt. Stanton stated that he used his taser on [REDACTED] in cartridge mode. [REDACTED] was interviewed and stated that police officers were trying to remove everyone from the F/O [REDACTED] because there was a shooting. [REDACTED] stated that the shooting wasn't near his location and it was just an excuse for officers to remove everyone. [REDACTED] began arguing with an officer and believes someone in his crowd threw a bottle at the officers, which made the officers "charge" towards him. [REDACTED] confirmed that he did have a bottle in his hand but did not throw it at officers. [REDACTED] stated that he was grabbed by an officer and tasered, fell on his face, sustaining bruises/swollen to the face. Dep. Insp. Nunez was formally interviewed and stated that he instructed [REDACTED] numerous times to move out of the crime scene. [REDACTED] told Dep. Insp. Nunez that he wasn't leaving and threatened to hit Dep. Insp. Nunez with the bottle he was holding. Dep. Insp. Nunez then swung his baton towards [REDACTED] with no impact in an attempt to remove the bottle he was holding and place him under arrest. [REDACTED] ran and Dep. Insp. Nunez along with Sgt. Stanton gave chase. Sgt. Stanton tasered [REDACTED] who was still holding a very large bottle in his hand. Dep. Insp. Nunez stated that he struck [REDACTED] with the baton while he was on the ground because he believed he was still holding the bottle and to prevent him from striking him with his feet. This investigation disclosed that there is insufficient evidence to prove or disprove that Dep. Insp. Nunez utilized unnecessary force by striking [REDACTED] with the baton. The allegation of Force - Struck with - Baton Asp will be closed as Unsubstantiated. |                                                       |                                                      |                               |                                        |                            |
| 3                                                     | Full Allegation<br>Aided MOS - Injured - Result of Taking Police Action                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Classification<br>NOTIFICATION/Additional Information | Allegation Index<br>ADD-Additional Information       | Allegation Date<br>07/05/2020 | Finding<br>04 - Info. and Intelligence | Finding Date<br>11/04/2020 |
|                                                       | Comments<br>This investigation disclosed that on July 4, 2020, Dep. Insp. Osvaldo Nunez, Tax# 918086, 114 Precinct, sustained an injury in connection with the arrest of [REDACTED] Arrest# [REDACTED]. Dep. Insp. Nunez reported that while he was attempting to handcuff and effect a lawful arrest of an individual who threatened to hit him with a bottle he felt a sprain and pain to his left thumb which quickly swelled and began to ache. A line of duty report was prepared under Line of Duty Report# 566 and Aided Report# 2020-114 [REDACTED]. The allegation of Aided MOS - Injured - Result of Taking Police Action will be closed as Information and Intelligence.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                       |                                                      |                               |                                        |                            |
| 4                                                     | Full Allegation<br>Prisoner Incident - Injured in NYPD Custody - MOS Involved                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Classification<br>Arrest Effected                     | Allegation Index<br>CI-Injured in Custody            | Allegation Date<br>11/05/2020 | Finding<br>04 - Info. and Intelligence | Finding Date<br>11/04/2020 |
|                                                       | Comments<br>This investigation disclosed that on July 4, 2020, [REDACTED] sustained an injury in NYPD custody in connection with Arrest# [REDACTED]. Department records disclosed that [REDACTED] was treated at Elmhurst Hospital for a laceration/contusion over the left eye and back as a result of being tasered. The allegation of Prisoner Incident - Injured in NYPD Custody - MOS Involved will be closed as Information and Intelligence                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                       |                                                      |                               |                                        |                            |
|                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                       |                                                      |                               |                                        |                            |
| Name<br>937583 MATTHEW STANTON SGT (114-114 PRECINCT) | Status<br>UNIFORM MEMBER OF SERVICE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Sex<br>MALE                                           | Race<br>WHITE                                        | Dob<br>[REDACTED]             |                                        |                            |
| Allegations                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                       |                                                      |                               |                                        |                            |
| 1                                                     | Full Allegation<br>Use of Force - Level 1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Classification<br>Arrest Effected                     | Allegation Index<br>Force Investigation Notification | Allegation Date<br>07/05/2020 | Finding<br>04 - Info. and Intelligence | Finding Date<br>11/04/2020 |
|                                                       | Comments<br>This investigation disclosed that on July 5, 2020, based on the use of force investigative responsibilities and reporting guide this matter was investigated by the Internal Affairs Bureau as a Use of Force - Level 1, due to the injuries sustained in connection with this incident. A Threat, Resistance or Injury Report was prepared under TRI# 2020-114 [REDACTED], by Sgt. Matthew Stanton, Tax# 937583, 114 Precinct, in connection with this incident. The allegation of Use of Force - Level 1, will be closed as Information and Intelligence.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                       |                                                      |                               |                                        |                            |
| 2                                                     | Full Allegation<br>CEW/Taser Discharged - with Probes - On a Prisoner/Suspect                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Classification<br>Arrest Effected                     | Allegation Index<br>CED Discharged                   | Allegation Date<br>07/05/2020 | Finding<br>04 - Info. and Intelligence | Finding Date<br>11/04/2020 |
|                                                       | Comments<br>The investigation disclosed that on July 4, 2020, Sgt. Matthew Stanton, Tax# 937583, 114 Precinct, discharged a CED with probes on [REDACTED] TRI# 2020-114 [REDACTED] with CEW Log Number# 20-710. The cartridge was vouchered under property invoice PETS Invoice# [REDACTED] SE# [REDACTED]. Sgt. Stanton deployed the CEW while in pursuit of [REDACTED]. The allegation of CEW/Taser Discharged - with Probes - On a Prisoner/Suspect will be closed as Information and Intelligence.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                       |                                                      |                               |                                        |                            |
| 3                                                     | Full Allegation<br>Prisoner Incident - Injured in NYPD Custody - MOS Involved                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | Classification<br>Arrest Effected                     | Allegation Index<br>CI-Injured in Custody            | Allegation Date<br>11/05/2020 | Finding<br>04 - Info. and Intelligence | Finding Date<br>11/04/2020 |
|                                                       | Comments<br>This investigation disclosed that on July 4, 2020, [REDACTED] sustained an injury in NYPD custody in connection with Arrest# [REDACTED]. Department records disclosed that [REDACTED] was treated at Elmhurst Hospital for a laceration/contusion over the left eye and back as a result of being tasered. The allegation of Prisoner Incident - Injured in NYPD Custody - MOS Involved will be closed as Information and Intelligence.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                       |                                                      |                               |                                        |                            |

ATTACHMENT

- 1  ['DI Nunez Disposition letter'](#)

|   |                                                                                                                                                |
|---|------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                                                                                                                                |
| 2 | <div> <a href="#">_Sgt. Stanton Disposition Letter'</a></div> |

|                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                             |                        |                                            |                                       |                                            |
|-----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|------------------------|--------------------------------------------|---------------------------------------|--------------------------------------------|
| Reporting Officer:    | Rank<br>SDS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Name<br>COOPER MARIA        |                        | Tax Reg. No.<br>926413                     |                                       | Command<br>SIU-SPECIAL INVESTIGATIONS UNIT |
| Reviewing Supervisor: | Manner of Closing<br>9 - UNSUBSTANTIATED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | Date Reviewed<br>11/11/2020 | Date of Next Review    | Name<br>WALSH JOHN                         |                                       | Supv. Tax No.<br>882216                    |
| Endorser:             | Rank<br>INS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | Name<br>MARTINEZ BIENVENIDO | Tax Reg. No.<br>913667 | Command<br>SIU-SPECIAL INVESTIGATIONS UNIT | DateTime Reviewed<br>11/05/2020 11:03 | Status<br>Approved                         |
|                       | <div>Comments</div> <div>THIS INVESTIGATION DISCLOSED THAT ON JULY 5, 2020, SGT. MATTHEW STANTON, TAX# 937583, 114 PRECINCT, CONTACTED THE COMMAND CENTER TO REPORT THAT WHILE CONDUCTING CROWD CONTROL IN REGARD TO AN OFFICER INVOLVED SHOOTING, ██████████ DOB ██████████ RAISED A BOTTLE AT DEP. INSP. OSVALDO NUNEZ, TAX# 918086, 114 PRECINCT, AND THREATENED TO STRIKE HIM WITH IT. DEP. INSP. NUNEZ ATTEMPTED TO STRIKE ██████████ WITH HIS BATON WHICH PROMPTED HIM TO FLEE ON FOOT. A FOOT CHASE ENSUED AND WHILE CHASING ██████████ AN UNKNOWN MALE CONFRONTED DEP. INSP. NUNEZ IN AN ATTEMPT TO STOP HIM. SGT. STANTON STATED THAT HE USED HIS TASER ON ██████████ IN CARTRIDGE MODE. ██████████ WAS INTERVIEWED AND STATED THAT POLICE OFFICERS WERE TRYING TO REMOVE EVERYONE FROM THE F/O ██████████ BECAUSE THERE WAS A SHOOTING. ██████████ STATED THAT THE SHOOTING WASN'T NEAR HIS LOCATION AND IT WAS JUST AN EXCUSE FOR OFFICERS TO REMOVE EVERYONE. ██████████ BEGAN ARGUING WITH AN OFFICER AND BELIEVES SOMEONE IN HIS CROWD THREW A BOTTLE AT THE OFFICERS, WHICH MADE THE OFFICERS "CHARGE" TOWARDS HIM. ██████████ CONFIRMED THAT HE DID HAVE A BOTTLE IN HIS HAND BUT DID NOT THROW IT AT OFFICERS. ██████████ STATED THAT HE WAS GRABBED BY AN OFFICER AND TASERED, FELL ON HIS FACE, SUSTAINING BRUISES/SWOLLEN TO THE FACE. DEP. INSP. NUNEZ WAS FORMALLY INTERVIEWED AND STATED THAT HE INSTRUCTED ██████████ NUMEROUS TIMES TO MOVE OUT OF THE CRIME SCENE. ██████████ TOLD DEP. INSP. NUNEZ THAT HE WASN'T LEAVING AND THREATENED TO HIT DEP. INSP. NUNEZ WITH THE BOTTLE HE WAS HOLDING. DEP. INSP. NUNEZ THEN SWUNG HIS BATON TOWARDS ██████████ WITH NO IMPACT IN AN ATTEMPT TO REMOVE THE BOTTLE HE WAS HOLDING AND PLACE HIM UNDER ARREST. ██████████ RAN AND DEP. INSP. NUNEZ ALONG WITH SGT. STANTON GAVE CHASE. SGT. STANTON TASERED ██████████ WHO WAS STILL HOLDING A VERY LARGE BOTTLE IN HIS HAND. DEP. INSP. NUNEZ STATED THAT HE STRUCK ██████████ WITH THE BATON WHILE HE WAS ON THE GROUND BECAUSE HE BELIEVED HE WAS STILL HOLDING THE BOTTLE AND TO PREVENT HIM FROM S TRIKING HIM WITH HIS FEET. THIS INVESTIGATION DISCLOSED THAT THERE IS INSUFFICIENT EVIDENCE TO PROVE OR DISPROVE THAT DEP. INSP. NUNEZ UTILIZED UNNECESSARY FORCE BY STRIKING ██████████ WITH THE BATON. THE ALLEGATION OF FORCE - STRUCK WITH - BATON ASP WILL BE CLOSED AS UNSUBSTANTIATED. BASED ON THE USE OF FORCE INVESTIGATIVE RESPONSIBILITIES AND REPORTING GUIDE THIS MATTER WAS INVESTIGATED BY THE INTERNAL AFFAIRS BUREAU AS A USE OF FORCE - LEVEL 2, DUE TO THE INJURIES SUSTAINED IN CONNECTION WITH THIS INCIDENT. A THREAT, RESISTANCE OR INJURY REPORT WAS PREPARED UNDER TRI# 2020-114-██████████ BY DEP. INSP. OSVALDO NUNEZ, TAX# 918086, 114 PRECINCT, IN CONNECTION WITH THIS INCIDENT. THE ALLEGATION OF USE OF FORCE - LEVEL 2, WILL BE CLOSED AS INFORMATION AND INTELLIGENCE. DEP. INSP. OSVALDO NUNEZ, TAX# 918086, 114 PRECINCT, SUSTAINED AN INJURY IN CONNECTION WITH THE ARREST OF ██████████ ARREST# ██████████. DEP. INSP. NUNEZ REPORTED THAT WHILE HE WAS ATTEMPTING TO HANDCUFF AND EFFECT A LAWFUL ARREST OF AN INDIVIDUAL WHO THREATENED TO HIT HIM WITH A BOTTLE HE FELT A SPRAIN AND PAIN TO HIS LEFT THUMB WHICH QUICKLY SWELLED AND BEGAN TO ACHE. A LINE OF DUTY REPORT WAS PREPARED UNDER LINE OF DUTY REPORT# 566 AND AIDED REPORT# 2020-114-██████████. THE ALLEGATION OF AIDED MOS - INJURED - RESULT OF TAKING POLICE ACTION WILL BE CLOSED AS INFORMATION AND INTELLIGENCE. ██████████ SUSTAINED AN INJURY IN NYPD CUSTODY IN CONNECTION WITH ARREST# ██████████. DEPARTMENT RECORDS DISCLOSED THAT ██████████ WAS TREATED AT ELMHURST HOSPITAL FOR A LACERATION/CONTUSION OVER THE LEFT EYE AND BACK AS A RESULT OF BEING TASERED. THE ALLEGATION OF PRISONER INCIDENT - INJURED IN NYPD CUSTODY - MOS INVOLVED WILL BE CLOSED AS INFORMATION AND INTELLIGENCE. SGT. MATTHEW STANTON, TAX# 937583, 114 PRECINCT, DISCHARGED A CED WITH PROBES ON ██████████ TRI# 2020-114-██████████ WITH CEW LOG NUMBER# 20-710. THE CARTRIDGE WAS VOUCHERED UNDER PROPERTY INVOICE# PETS INVOICE# ██████████, SE# ██████████. SGT. STANTON DEPLOYED THE CEW WHILE IN PURSUIT OF ██████████. THE ALLEGATION OF CEW/TASER DISCHARGED - WITH PROBES - ON A PRISONER/SUSPECT WILL BE CLOSED AS INFORMATION AND INTELLIGENCE. ██████████ SUSTAINED AN INJURY IN NYPD CUSTODY IN CONNECTION WITH ARREST# ██████████. DEPARTMENT RECORDS DISCLOSED THAT ██████████ WAS TREATED AT ELMHURST HOSPITAL FOR A LACERATION/CONTUSION OVER THE LEFT EYE AND BACK AS A RESULT OF BEING TASERED. THE ALLEGATION OF PRISONER INCIDENT - INJURED IN NYPD CUSTODY - MOS INVOLVED WILL BE CLOSED AS INFORMATION AND INTELLIGENCE. BASED ON THE USE OF FORCE INVESTIGATIVE RESPONSIBILITIES AND REPORTING GUIDE THIS MATTER WAS INVESTIGATED BY THE INTERNAL AFFAIRS BUREAU AS A USE OF FORCE - LEVEL 1, DUE TO THE INJURIES SUSTAINED IN CONNECTION WITH THIS INCIDENT. A THREAT, RESISTANCE OR INJURY REPORT WAS PREPARED UNDER TRI# 2020-114-██████████, BY SGT. MATTHEW STANTON, TAX# 937583, 114 PRECINCT, IN CONNECTION WITH THIS INCIDENT. THE ALLEGATION OF USE OF FORCE - LEVEL 1, WILL BE CLOSED AS INFORMATION AND INTELLIGENCE.</div> |                             |                        |                                            |                                       |                                            |
| Endorser:             | Rank<br>DC                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Name<br>WALSH JOHN          | Tax Reg. No.<br>882216 | Command<br>SIU-SPECIAL INVESTIGATIONS UNIT | DateTime Reviewed<br>11/11/2020 14:05 | Status<br>Approved                         |
|                       | <div>Comments</div> <div>CONCUR CASE CLOSED</div>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                             |                        |                                            |                                       |                                            |